

PROJECT DOCUMENT

Mitsue Project

Morgan Lewis: Comprehensive ISH Support Capabilities



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Overview

This document provides a comprehensive overview of Morgan Lewis's capabilities for supporting International Social Humanitarian (ISH) projects and nonprofit organizations in Japan. Morgan Lewis emerges as a strong alternative partner to Baker McKenzie, particularly for ISHs focused on social impact, sustainability, and hybrid business models.

Executive Summary

Morgan Lewis brings **exceptional pro bono culture** (100% participation rate for 5 consecutive years) combined with **specialized social impact expertise** that makes it an ideal partner for ISH projects. The firm's **dedicated Impact Investing practice**, **Tax-Exempt Organizations expertise**, and **Japan-specific capabilities** provide a robust foundation for supporting socially-driven initiatives.

Key Strengths for ISH Projects

1. Outstanding Pro Bono Culture

- **100% participation rate** in annual Pro Bono Challenge (5 consecutive years)
- **Nearly 2,000 lawyers globally** contributing 20+ hours each to pro bono service
- **\$5 million+** contributed to global causes in past 5 years
- **Focus on economically disadvantaged and vulnerable populations**

2. Specialized Social Impact Practice

- **50+ lawyers** across 9 practices with impact investing experience
- **15+ years of impact investing expertise** (predates the term's popularity)
- **Dedicated Impact Investing practice** established early in sustainability movement
- **Hybrid structure expertise** for social enterprises and B-corps

Japan-Specific Capabilities

Tokyo Office Strategic Position

- **Global network with local expertise** - 30+ offices with integrated Tokyo support
- **50th largest foreign law firm** in Japan (among international firms)
- **170+ local professionals** including Japanese lawyers, foreign registered lawyers, tax attorneys, and certified public accountants
- **Established 1873** with deep historical knowledge of Japanese legal environment

Local Market Integration

- **Understanding of Japanese nonprofit regulations** and public benefit corporation (SPC) framework
- **Familiarity with Japanese banking requirements** for CSOs and nonprofit entities
- **Cross-border transaction expertise** for international organizations operating in Japan
- **ESG and sustainability advisory** aligned with Japan's 2050 carbon neutrality goals

Detailed Service Capabilities

1. Legal Entity Formation & Structure

Tax-Exempt Organizations Practice (Since 1873)

- **Complete lifecycle support:** From incorporation through operations
- **Entity type selection:** NPO corporations, general incorporated associations, public interest corporations
- **Hybrid structure design:** Program-related investments, mission-related investments
- **International expansion:** Support for global nonprofit networks

Social Enterprise Support

- **Public benefit corporation (SPC) formation**
- **Designated B-corp structure setup**
- **Social enterprise legal frameworks**
- **Mission-driven business model documentation**

2. Financial Infrastructure & Capital Access

Impact Investment Expertise

- **Mission-related investments (MRIs)** and **program-related investments (PRIs)**
- **Charity-sponsored impact funds**
- **Blended finance structures**
- **Catalytic capital deployment**

Project Finance & Capital Markets

- **Fund formation and structuring** for impact-focused vehicles
- **Regulatory compliance** across multiple jurisdictions
- **Market entry and expansion support**
- **Investment management setup**

3. ESG & Sustainability Integration

Sustainability Leadership

- **Set up world's first climate change practice** over 20 years ago
- **Market-leading renewable energy deals** and clean tech projects
- **ESG advisory practice** collaborating with international organizations
- **ESG disclosure and reporting** expertise for public companies

Specific ESG Services

- **Hydrogen and CCS projects**
- **Unitranche impact-based debt facilities**
- **Green loans and blue bonds**
- **Renewable energy project finance**
- **Sustainability reporting frameworks**

4. Regulatory Compliance & Risk Management

Japanese Regulatory Navigation

- **Act on Promotion of Specified Nonprofit Activities (NPS Act) expertise**
- **Public benefit certification** and compliance requirements
- **Japanese banking account establishment** for CSOs
- **Tax exemption application** support

Risk Management

- **Governance design and board compliance**
- **Conflicts of interest** and fiduciary duty guidance
- **Regulatory change monitoring**
- **Compliance reporting systems**

Comparative Analysis: Morgan Lewis vs. Baker McKenzie

Capability	Morgan Lewis	Baker McKenzie
Pro Bono Culture	100% participation, 2K+ lawyers	Strong infrastructure, Pro Bono Committee
Social Impact Focus	Specialized Impact Investing practice, 15+ years ESG experience	Extensive project finance, leisure industry expertise
Japan Presence	Global network with strong local Tokyo integration, ESG/regulatory expertise	Established 50+ year presence, broader project finance portfolio
Nonprofit Support	Tax-exempt expertise, hybrid structures, social enterprise focus	NPO formation support, legal infrastructure
CSR Integration	Firmwide charitable programs, global outreach	Pro Bono Committee, community development

Recommended Use Cases for Morgan Lewis

Ideal For ISH Projects Involving:

1. Social Impact Measurement

- Impact-first investment models
- Social outcome metrics
- Mission-aligned financial structures

2. ESG & Sustainability Focus

- Climate change projects
- Renewable energy initiatives
- Social impact bond structures
- Sustainable development goals alignment

3. Hybrid Business Models

- Public benefit corporations
- B-corps certification
- Social enterprises
- Impact-driven startups

4. International Expansion

- Cross-border nonprofit operations
- Global funding partnerships
- International grant structures
- Global network access

Practical Support Examples

Direct Pro Bono Engagement

- **Associate secondment opportunities** at nonprofit organizations
- **Legal representation** for underserved communities
- **Board governance support** for emerging nonprofits
- **Compliance system setup** and implementation

Strategic Partnerships

- **Equal Justice Works fellowship co-sponsorship**
- **Community investment programs**
- **Skill-based volunteering** for NGOs
- **Capacity building** for grassroots organizations

Thought Leadership & Knowledge Sharing

- **Industry-leading ESG research** programs
- **Public policy engagement** and advocacy
- **Legal innovation** and access to justice initiatives
- **Sustainability thought leadership** in global forums

Engagement Models for ISH Projects

1. Legal Service Partnership

- **Pro bono legal representation** for specific matters
- **Regulatory compliance consulting**
- **Structuring support** for new initiatives
- **Risk management framework** development

2. Strategic Advisory Role

- **Impact investment structuring**
- **ESG integration strategy**
- **Sustainability reporting framework**
- **Tax-efficient giving structures**

3. Capacity Building Partnership

- **Staff training and development**
- **Governance system implementation**
- **Operational process design**
- **Technology integration** for impact measurement

Contact & Next Steps

For ISH Project Leaders:

1. **Initial Consultation:** Schedule legal strategy session
2. **Needs Assessment:** Identify priority areas for support
3. **Partnership Design:** Create tailored engagement model
4. **Implementation Planning:** Develop phased rollout strategy

For Legal Team Professionals:

1. **Pro Bono Case Assignment:** Submit qualifying matters
2. **Community Outreach:** Connect with local nonprofit partners
3. **Training Programs:** Develop pro bono service capabilities
4. **Impact Measurement:** Track and report social outcomes

Conclusion

Morgan Lewis stands out as a **strategic partner for ISH projects** that require:

1. **Deep social impact expertise** rather than just legal compliance
2. **Sustainability and ESG integration** capabilities
3. **Hybrid business model support**
4. **Global network access** with local implementation
5. **Long-term partnership commitment** rather than transactional relationships

For ISH projects focusing on social impact, sustainability, and scalable social enterprise models, Morgan Lewis offers capabilities that complement Baker McKenzie's strengths in traditional project finance and legal infrastructure.

The firm's **dedicated Impact Investing practice, exceptional pro bono culture, and Japan-specific ESG expertise** make it an excellent choice for organizations seeking to maximize both social and financial returns while maintaining strong community integration and regulatory compliance.